

United India Insurance Company Limited vs Eda Anjanamma And Ors. on 22 August, 2003

Equivalent citations: I(2004)ACC617, 2005ACJ1921, 2004(1)ALD117, 2003 A I H C 4165, (2004) 1 TAC 688, (2004) 1 ANDHLD 117, (2004) 1 ACC 617, (2005) 3 ACJ 1921, (2003) 2 ANDHWR 608

JUDGMENT

G. Yethirajulu, J.

1. This appeal is preferred by the United India Insurance Company, Kurnool against the order of the Motor Accident Claims Tribunal-cum-II Additional District Judge, Kurnool ('the Tribunal' for brevity) in O.P. No. 160 of 1993.

2. A person by name E. Venkata Ramana died in a tractor accident occurred on 3-9-1992. His wife, father and mother filed an application under Section 166 of the Motor Vehicles Act claiming a compensation of Rs. 2,00,000/- under various heads. During the pendency of the petition the father of the deceased died, therefore, the claim made by him stood abated. The Tribunal after taking into consideration the evidence adduced by both parties awarded Rs. 94,400/-under various heads and made the appellant jointly and severally liable along with the owner of the vehicle to pay the compensation amount.

3. The insurance company being aggrieved by the order of the Tribunal making it liable to pay the compensation preferred this appeal challenging its validity and legality contending that the petition ought to have been dismissed on the ground that the negligence of the driver was not proved, that the multiplying factor of 18.42 applied by the Tribunal is contrary to the judgment of the Supreme Court, that no amount could be awarded under the head "loss of love and affection", that the Tribunal erred in granting compensation for loss of dependency to the first petitioner after coming to know that she got remarried during the pendency of the petition and should have held that she is not entitled to any amount under the head "loss of dependency". The appellant further contended that the Tribunal erred in granting compensation under the head "loss of consortium" to the first petitioner despite the fact that she got remarried within short time after the accident. The learned Counsel for the appellant laid stress on the point whether the first petitioner i.e., the widow of the deceased is entitled for any compensation towards loss of dependency after her remarriage.

4. P.W.I was aged about 20 years by the date of accident. She lost her husband in the accident within five (5) months after the marriage. Her second marriage after 3 years of the accident is not disputed. There are no children to her through the deceased. According to the evidence of PW.I, her in-laws neglected her after the death of the deceased and drove her out from their house, therefore, she went to her parents house and had the second marriage. She further deposed that her parents spent Rs.

35,000/- for her marriage with the deceased and they also spent Rs. 25,000/- for the second marriage.

5. The Tribunal observed that there is no bar for the young widow to remarry. She suffered mental agony due to the sudden demise of her husband for a period of three years when he died within five months after their marriage. There was loss of consortium to the first petitioner during the period of three years. The Tribunal therefore awarded Rs. 3,000/- towards compensation for loss of consortium, Rs. 3,000/- towards compensation for loss of love and affection and Rs. 88,400/- towards loss of dependency to all the petitioners.

6. The learned Counsel for the appellant cited a judgment rendered by a Division Bench of the Orissa High Court in *State of Orissa v. Archana Nayak*, 1987 ACJ 772 (Orissa) (DB), wherein the Division Bench held that the right to claim compensation must be confined to those who are entitled to be maintained and supported by the victim as his legal representatives. A widow after her remarriage cannot continue as the legal representative of her first husband. There is a cessation of her status as the legal representative of her husband and she suffers a civil death so far as the estate of her first husband is concerned. The Bench further observed that the widow ceases to be a dependant upon her remarriage. If wife could not claim financial contribution from the husband upon her remarriage, on *pan materia* reasoning, the widow cannot claim compensation on the basis of loss of dependency after her remarriage. Upon tier remarriage, she ceases to be a legal representative for the purpose of Section 110-A.

7. In the above judgment the Division Bench also observed that the widow of the deceased will be entitled to compensation only for the period during which she remained as his widow till the date of her remarriage.

8. In the case covered by the above decision, the deceased died on 12-6-1969. His widow and minor girl filed an application under Section 110-A of the Act for Rs. 2,00,000/- towards compensation. The widow remarried 4 years 5 months after the death of her first husband. The Tribunal assessed the dependency at Rs. 250/- per month and awarded Rs. 10,000/- to the widow for the period up to her remarriage and Rs. 22,000/- to her daughter. In appeal, the Single Judge assessed dependency at Rs. 500/- per month and enhanced the award to Rs. 95,000/-. The Division Bench of the High Court took dependency at Rs. 500/- p.m. and awarded Rs. 20,000/- to the widow for the period she remained as widow and Rs. 44,000/- to her daughter by reducing the total award to Rs. 64,000/-.

9. The effect of remarriage by a widow after the death of her husband had fallen for consideration in several cases from time to time.

10. Under Section 2 of the Hindu Widows' Re-marriage Act, 1856, all rights and interests of a widow in her deceased husband's property shall cease upon her remarriage and shall be determined "as if she had then died." But, by virtue of Section 4(1) of the Hindu Succession Act, 1956, the provisions of Section 2 of the 1856 Act stand abrogated (*Jagdish Mahton v. Mohammad Elahi*, AIR 1970 Pat. 170). By virtue of Section 14 of the Hindu Succession Act, the property of her husband vested in her cannot be divested, i.e., once a widow succeeds to the property of her husband and acquired an

absolute right over the same, she would not be divested of that absolute right on her remarriage. But, she would certainly cease to be a legal representative of the first husband on her remarriage. Under Section 22 of the Hindu Adoptions and Maintenance Act, 1956, she also ceases to be a dependant and thus if a widow remarries after the death of her husband, her dependency ends.

11. In England, the law has been changed under the Law Reform (Miscellaneous Provisions) Act, 1971 and the remarriage of the widow or the chance of her remarriage is not to be taken into account in assessing the damages payable to her. (Thompson v. Price, 1974 ACJ 501 QBD England)

12. In R.B. Moondra and Co. v. Bhanwari, 1971 ACJ 438 (Rajasthan) a learned Judge of the Rajasthan High Court while dealing with a case under the Workmen's Compensation Act held that a widow is entitled for compensation even after remarriage also. The learned Judge declined to follow the provisions of Hindu Adoptions and Maintenance Act on the ground that the definition of "dependant" under the Workmen's Compensation Act has a wider meaning and not a restricted meaning, therefore, remarriage will not disentitle her to claim compensation. But, in a subsequent case, in Makbool Ahmed v. Bhura Lal, 1986 ACJ 219 (Rajasthan), the Rajasthan High Court took the view that if a widow remarries after the death of her husband, her dependency ends and the amount of compensation has to be calculated only up to the date of her remarriage. A Division Bench of the Madhya Pradesh High Court in Manjula Devi Bhuta v. Manjusri Raha, 1968 ACJ 1 (MP), in a well considered judgment held that if the widow re-marries, loss would be assessed only for the period she remained as a widow.

13. Under Section 19 of the Hindu Adoptions and Maintenance Act a widow daughter-in-law is entitled to be maintained by the father-in-law under certain circumstances, but the application to maintain ceases on the remarriage of the daughter-in-law. Similarly, a direction for payment of permanent maintenance given by the Court for passing any decree for judicial separation or any adverse or any time subsequent thereto may be rescinded by the Court upon remarriage. (Section 25(3) of the Hindu Marriage Act).

14. The right to maintenance ceases upon remarriage. If wife could not claim financial contribution from her husband, upon her remarriage, on *pan materia* reasoning the widow claim compensation on the basis of loss of dependency after her remarriage, therefore, to maintain the application, the claimant must not only be a legal representative at the time of the death of the husband and also at the time of presentation of the application and only upon her remarriage she ceases to be a legal representative for the purpose of Section 110-A of the Act.

15. In the case on hand, the application under Section 166 of the Act was filed after the death of the first husband of the widow and during the pendency of the petition she got remarried, therefore, there is no scope to question the maintainability of the petition under the Act.

16. The learned Counsel for the respondent-claimant relied on a judgment of the Rajasthan High Court in Vimala Devi v. Chaman, 1992 ACJ 1048 (Rajasthan) wherein a learned Single Judge held that the compensation assessed on the basis of the principles of assessment cannot be reduced on account of remarriage or prospects of remarriage of the widow which will be against the spirit of

Constitution and will put a check on the remarriage system provided under various legislations. On the contrary, an incentive should be given for remarriage for preservation of better society. The learned Single Judge went a step further than the Division Bench of the Orissa High Court in Archana Nayak (supra) and did not express any inclination to deduct any amount on account of the remarriage of the widow. But, the cardinal principle that has to be applied in this type of cases is that since the widow ceases to be a legal representative of the deceased and also as his dependant, it would be appropriate if the loss of dependency is confined to the period from the date of accident till the date of remarriage of the widow.

17. In *Khairullah v. Anitha*, 1994 ACJ 1017, a learned Single Judge of this Court held that the remarriage will not debar the widow from her right to claim compensation and it cannot be taken as a ground to refuse compensation as being a widow no person of equal status of the deceased husband would come forward to remarry her.

18. In *Halki Bai v. New India Assurance Co., Ltd.*, 1999 ACJ 187, a Division Bench of the Madhya Pradesh High Court held that a widow is entitled to receive compensation for the death of her husband even after her remarriage, but not a larger share.

19. In *Manthani Kittamma v. Tippareddy Veera Reddy*, , a learned Single Judge of this Court held that a widow getting remarried is not a bar to grant compensation to which she is otherwise legally entitled and the widow's entitlement cannot be denied on the ground that there is likelihood of her remarriage.

20. After analyzing the above legal position it is made out that a widow of the deceased who died in the motor accident is entitled for compensation for loss of dependency, loss of consortium and the other items of compensation till she ceases to be the legal representative of her late husband on her remarriage, therefore, she cannot be denied compensation completely and it has to be reduced on the basis of the period during which she remained as the widow of the deceased.

21. In the case on hand, the first claimant remained as a widow for about three (3) years after the death of the deceased. Since the deceased died within five (5) months after the marriage, the compensation has to be awarded keeping in view the age of the first claimant, the period during which they led the marital life, the period during which she remained as the widow, the mental agony she had undergone due to the sudden demise of her husband and the loss of consortium to her. The Tribunal awarded Rs. 94,200/- towards total compensation out of which Rs. 88,400/- was awarded as the amount towards loss of dependency, Rs. 3,000/- towards loss of consortium to the first petitioner and Rs. 3,000/- towards non-pecuniary damages. Out of the total amount, the Tribunal directed payment of Rs. 50,000/- to the first claimant and Rs. 44,400/- towards compensation to the third claimant i.e., the third respondent herein. Since the first claimant-first respondent is a young widow, the Tribunal preferred to allot more amount to her towards loss of dependency and lesser amount to the third claimant, but since the first respondent had a second marriage three years after the accident, she is not entitled for the entire amount and it has to be reduced to a reasonable extent. Since the amount awarded by the Tribunal is not so high, I am of the view that the ends of justice would be met if Rs. 20,000/- is deducted from the compensation of the

first respondent on account of loss of her social status as a legal representative for three years after the death of the deceased. After deducting Rs. 20,000/- from the amount allotted to the first respondent, she is entitled to Rs. 30,000/- and the third respondent is entitled to Rs. 44,400/-. The award of the Tribunal is accordingly liable to be modified.

22. In the result, the appeal is allowed in part. There shall be reduction of Rs. 20,000/- in the compensation of Rs. 94,400/- and the total compensation payable to both the claimants is Rs. 74,400/-. Out of the said amount, the first claimant is entitled to Rs. 30,000/- and the third claimant is entitled to Rs. 44,400/-. The rate of interest awarded by the Tribunal and the liability of the appellant and the owner remains undisturbed. The amount is directly payable to both the claimants and not in accordance with the direction given by the Tribunal. Each party to bear its own costs.